

7.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO QUASH OR MODIFY SUBPOENAS SERVED BY DEFENDANT WILLIAM CHAPMAN AND REQUEST FOR MONETARY SANCTIONS BY WENDY ALEJANDRA CORTEZ

Tentative Ruling: The court is authorized to order a subpoena be quashed, modified, or that compliance be directed, with or without limitations, on the filing of a motion. (CCP §§ 1985.3, 1985.6, and 1987.1.) A motion to quash or modify may be granted on the grounds that the matters sought to be discovered are privileged, protected, or beyond the scope of discovery. (CCP § 2017.010; *Rudnick v. Superior Court* (1974) 11 Cal.3d 924, 929.) Wendy brings this motion seeking to quash or modify five subpoenas because the documents sought are protected by his right to privacy and/or seek irrelevant information.

Based on the opposition and reply, Chapman has withdrawn the offending original set of deposition subpoenas and has reissued new ones limiting the time and scope of the subpoenas. Based on this, the motion itself is moot other than the request sanctions.

Under CCP § 1987.2(a), the Court has discretion to award sanctions, “if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena were oppressive. In the declaration of Plaintiffs’ attorney, multiple emails and a voicemail were left for defense counsel prior to the filing of the motion without any response (Declaration of Erick Palafox, ¶¶ 5-6.) Per Defendant’s attorney, the subpoenas were withdrawn approximately two weeks after the initial motion to quash was filed, with Defendant reissuing new subpoenas (that are subject to another motion to quash currently set for July 13th, 2026). (Declaration of Charmaine V. Jackson, section I.)

Sanctions in the amount of \$1,821.36 awarded (3.5 hours at \$500/hour + \$71.36 filing fee), payable in 30 days to Plaintiffs’ attorney.

Motion to Quash Amended Subpoenas and Case Management Conference confirmed for 7.13.26.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION TO COMPEL

Tentative Ruling: Service of a proper deposition notice is sufficient to compel a party or the employee of a party to appear, testify, and produce records in their possession without a subpoena. (CCP §2025.280(a).) If a party deponent fails to appear or produce documents, without having serviced a valid objection under CCP § 2025.410, the party giving the notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. (CCP § 2025.450(a).) Such a motion must be accompanied by a meet and confer declaration under CCP § 2016.040, or when the deponent failed to attend the deposition, a declaration stating that the moving party contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) “Implicit in the requirement that counsel contact the deponent to inquire about the nonappearance